

(Unofficial Translation)

Notification of the Ministry of Public Health

(No. 459) B.E. 2568 (2025)

Issued by virtue of the Food Act B.E. 2522

Re: Import requirements and conditions for food with risk from Bovine Spongiform Encephalopathy

It deems appropriate to revise the import requirement for food with risk from Bovine Spongiform Encephalopathy (BSE) in order to optimize protection of consumer safety and to comply with guideline of the World Organisation for Animal Health (WOAH).

By virtue of the provision in the first paragraph of Section 5 and Section 6 (7) (8) and (9) of the Food Act B.E. 2522 (1979), the Minister of Public Health hereby issues the notification as the follows:

Clause 1 The Ministry of Public Health Notification (No. 377) B.E. 2559 (2016) entitled "Re: Designation of Requirements and Conditions for Import Food with Risk from Bovine Spongiform Encephalopathy ", dated 11st July B.E. 2559 (2016) shall be repealed.

Clause 2 In this notification:

“BSE risk status” means the risk of Bovine Spongiform Encephalopathy (BSE) or mad cow disease prevalent to bovine population within the particular country or zone or compartment; which classified into three categories, as follows:

Category 1 Country or zone or compartment posing a negligible BSE risk;

Category 2 Country or zone or compartment posing a controlled BSE risk;

Category 3 Country or zone or compartment posing an undetermined BSE risk;

The list of the countries or zones or compartments prescribed in the list annexed to this Notification.

“Meat” means all edible parts of bovine such as meat, hides and skins, fat, offal, bone, milk, blood, bile, or tonsils.

“Fresh Meat” means “Meat” that has not been subjected to any treatment irreversibly modifying its organoleptic and physicochemical characteristics. This also includes frozen meat, chilled meat, or minced meat.

“Meat Products” means “Meat” that has been subjected to a treatment irreversibly modifying its organoleptic and physicochemical characteristics such as fresh meat marinated with sauce, brined offal, sausage, gelatin or collagen, and also includes food products prepared from or containing “Meat Products” such as dietary supplement capsule that made of bovine gelatine, beverages containing collagen, sweets containing gelatin or jelly.

“Port of entry” means the checkpoint responsible for inspecting fresh meat and meat products in accordance with the food law or the law regarding animal epidemics, as the case may be, namely the port of entry of the Food and Drug Administration, the port of entry of the Department of Livestock Development.

Clause 3 The following “Fresh Meat” and “Meat Products” shall be imported without any condition of the BSE risk status categorization:

- (1) Milk, Milk Products;
- (2) Bovine Hides and Skins;
- (3) Gelatine and Collagen;
- (4) Tallow with maximum level of insoluble impurities of 0.15% in weight and derivatives made from this tallow;
- (5) Dicalcium phosphate (with no trace of protein or fat);
- (6) “Meat Products” which contained (1) (2) (3) (4) or (5) as ingredients.

Clause 4 The following “Fresh Meat” and “Meat Products” shall be imported with the conditions of the BSE risk status categorization, as the case may be, as follows:

(1) “Fresh Meat” and “Meat Products” other than those listed in Clause 3, shall be subjected to the following conditions:

(a) Category 1

- 1) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 1 of the BSE risk status;
- 2) Such bovines shall be identified through an animal identification system;
- 3) Such bovines have been subjected to an ante-mortem inspection.

(b) Category 2

- 1) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 2 of the BSE risk status and born after the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible;

- a) Such bovines shall be identified through an animal identification system;
- b) Such bovines have been subjected to an ante-mortem inspection.

- 2) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 2 of the BSE risk status and born before the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible;

- a) Such bovines shall be identified through an animal identification system;
- b) Such bovines have been subjected to an ante-mortem inspection.

- c) Such bovines shall be subjected to slaughter, blood collection and subsequent processing as follows:

- c.1) Such bovines shall not be subjected to a stunning process with a device injecting compressed air or gas into the cranial cavity, or to a pithing process, or to any other procedure that can contaminate blood with nervous tissue, prior to slaughter; and

c.2) Shall not be contained and contaminated with:

c.2.1) distal ileum from bovines of any age;

c.2.2) skull, brain, eyes, vertebral column and spinal cord of bovines over 30 months of age;

c.2.3) mechanically separated meat from the skull or from the vertebral column of bovines over 30 months of age.

(c) Category 3

1) Derived from the bovines that were identified through an animal identification system;

2) Such bovines have never been fed “protein meal” which means any final or intermediate solid protein-containing product, obtained when animal tissues are rendered, excluding peptides of a molecular mass less than 10,000 daltons and amino-acids; derived from ruminants;

3) Such bovines shall be subjected to ante-mortem inspection; and shall not be subjected to a stunning process with a device injecting compressed air or gas into the cranial cavity, or to a pithing process, or to any other procedure that can contaminate blood with nervous tissue, prior to slaughter;

4) Shall not be contained and contaminated with:

a) distal ileum from bovines of any age;

b) skull, brain, eyes, vertebral column and spinal cord of bovines over 30 months of age;

c) mechanically separated meat from the skull or from the vertebral column of bovines over 30 months of age.

(2) Blood and blood products, shall be subjected to the following conditions:

(a) Category 1

1) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 1 of the BSE risk status;

2) Such bovines shall be identified through an animal identification system.

(b) Category 2

1) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 2 of the BSE risk status and born after the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible. Such bovines shall be identified through an animal identification system;

2) Derived from the bovines that were born and kept the country or zone or compartment classified as category 2 of the BSE risk status and born before the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible. Such bovines shall be slaughtered, blood collected and processed as follows:

a) Blood was collected from the bovines not subjected to a stunning process with a device injecting compressed air or gas into the cranial cavity, or to a pithing process, or to any other procedure that can contaminate the blood with nervous tissue, prior to slaughter; and

b) Collected and processed in a manner that ensures they are not contaminated with nervous tissue.

(c) Category 3

1) Blood was collected from the bovines not subjected to a stunning process with a device injecting compressed air or gas into the cranial cavity, or to a pithing process, or to any other procedure that can contaminate the blood with nervous tissue, prior to slaughter; and

2) Collected and processed in a manner that ensures they are not contaminated with nervous tissue.

(3) Tallow (other than those listed in Clause 3 (4)), shall be subjected to the following conditions:

(a) Category 1

Derived from the country or zone or compartment classified as category 1 of the BSE risk status.

(b) Category 2

1) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 2 of the BSE risk status and born after the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible. Such bovines shall be passed ante-mortem inspection;

2) Derived from the bovines that were born and kept in the country or zone or compartment classified as category 2 of the BSE risk status and born before the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible; and has not been prepared using the commodities as follows:

a) distal ileum from bovines of any age;

b) skull, brain, eyes, vertebral column and spinal cord of bovines over 30 months of age;

c) mechanically separated meat from the skull or from the vertebral column of bovines over 30 months of age;

d) "Fresh Meat" which contaminated with a) b) or c).

(c) Category 3

Derived from the bovines which have been subjected to an ante-mortem inspection and has not been prepared using the commodities as follows:

1) distal ileum from bovines of any age;

2) skull, brain, eyes, vertebral column and spinal cord of bovines over 30 months of age;

3) mechanically separated meat from the skull or from the vertebral column of bovines over 30 months of age;

4) “Fresh Meat” which contaminated with 1) 2) or 3).

(4) Tallow derivatives (other than those listed in Clause 3 (4)), shall be subjected to the following conditions:

(a) Category 1

Derived from the country or zone or compartment classified as category 1 of the BSE risk status.

(b) Category 2 or Category 3

Derived from or produced under either of the following conditions:

1) Derived from tallow complied the conditions as specified in Clause (3);

2) Produced by hydrolysis, saponification or transesterification that uses high temperature and pressure.

(5) Dicalcium phosphate (other than those listed in Clause 3 (5)), shall be subjected to the following conditions:

(a) Category 1

Derived from the country or zone or compartment classified as category 1 of the BSE risk status.

(b) Category 2 or Category 3

the dicalcium phosphate is a co-product of bone gelatine.

(6) “Meat Products” which contain (1) (2) (3) (4) or (5) as ingredients, shall be subject to the conditions according to their BSE risk status categorization.

Import of any “Fresh Meat” and “Meat Products” according to the first paragraph, in the case of the reporting case of animal infected with BSE occurred in the country or zone or compartment, the importers shall provide documents indicated that they have complied with the requirements and conditions set forth by the Department of Livestock Development presented to the officer at “Port of entry” every time of entry.

Clause 5 The following “Fresh Meat” and “Meat Products” are prohibited to be imported:

(1) Category 2

Derived from the bovines that were born before the date from which the risk of the BSE agents being recycled within the bovine population has been demonstrated to be negligible, as follows:

(a) distal ileum from bovines of any age;

(b) skull, brain, eyes, vertebral column and spinal cord of bovines over 30 months of age;

(c) mechanically separated meat from the skull or from the vertebral column of bovines over 30 months of age;

(d) “Fresh Meat” which contaminated with (a) (b) or (c);

(e) “Meat Products” which contained (a) (b) (c) or (d) as ingredients;

(f) “Meat Products” which contained proteins prepared from (a) (b) (c) (d) or (e) as ingredients.

(2) Category 3

(a) distal ileum from bovines of any age;

(b) skull, brain, eyes, vertebral column and spinal cord of bovines over 30 months of age;

(c) mechanically separated meat from the skull or from the vertebral column of bovines over 30 months of age;

(d) “Fresh Meat” which contaminated with (a) (b) or (c);

(e) “Meat Products” which contained (a) (b) (c) or (d) as ingredients;

(f) “Meat Products” which contained proteins prepared from (a) (b) (c) (d) or (e) as ingredients.

Clause 6 Import of “Meat Products” according to Clause 3 (4) or (5) and also includes foods containing such products as ingredients, the importer shall have the certificate which certified by the responsible government agency from producing country or other agencies recognized by the responsible government agency of country as such, to present to the officer at “Port of entry” for every time of entry and of which shall specify at least as follows:

(1) Insoluble impurities not exceed 0.15 percent in weight, for food according to Clause 3 (4) and also includes foods containing such products as ingredients.

(2) No trace of protein or fat, for food according to Clause 3 (5) and also includes foods containing such products as ingredients.

Unless the agencies according to the first paragraph, issue the certificate of “Meat Products” according to Clause 3 (4) or (5) and also includes foods containing such products as ingredients, the importer shall have the certificate of inspection and certification from responsible government agency or other agencies recognized by responsible government agency of producing country of such products, or Certification Body (CB) which is accredited by the Accreditation Body (AB) that are members and have been recognized by the International Accreditation Forum (IAF), which is still valid, indicating either of the following quality assurance system of the manufacturing premise of such products:

(1) Hazard Analysis and Critical Control Point (HACCP) System as designated by the Codex Alimentarius Commission;

(2) Food Safety Management Systems-Requirements for any Organization in the Food Chain (ISO 22000 latest edition);

(3) Pharmaceutical Inspection Co-operation Scheme: PIC/S GMP;

(4) Other criteria or other international systems equivalent to (1) (2) or (3), or other systems that applied hazard analysis and critical control point (HACCP) system as approved by Thai FDA.

Clause 7 Import of “Fresh Meat” according to Clause 4 (1) or (2), and also includes “Meat Products” which defined as “carcass” according to the law regarding animal epidemics, the origin of animals or carcasses shall be inspected and certified by the Department of Livestock Development (DLD) and the importer shall have the evidence or certificate to present to the officer at “Port of entry” for every time of entry, as follows:

(1) Evidence or certificate of inspection and certification of origin of animals or carcasses, or evidence of permission to import the carcasses from the Department of Livestock Development (DLD);

(2) Copy of the Health Certificate of carcasses from responsible government agency of producing country or other agencies recognized by responsible government agency of producing country as such, indicating the details complied with requirements and conditions as specified by the Department of Livestock Development.

Clause 8 Import of “Meat Products” according to Clause 4 that are apart from “Meat Products” which defined as “carcass” according to the law regarding animal epidemics, the importer shall have the certificate which certified by the responsible government agency from producing country or other agencies recognized by the responsible government agency of country as such, to present to the officer at “Port of entry” for every time of entry and of which shall specified at least as follows:

(1) Raw materials and country of origin of the raw materials;

(2) Details of the requirements and conditions of raw materials or ingredients derived from bovine used to produce “Meat Products”, the procedure shall be complied with the terms and conditions specified in this notification, as the case may be;

(3) Certification for food safety of such “Meat Products” by indicating either of the following:

(a) No contamination with “Fresh Meat” and “Meat Products” as specified in Clause 5 during storage of raw materials, food processing and storage of “Meat Products”, or other similar texts;

(b) “Meat Products” have not been contaminated with “Fresh Meat” and “Meat Products” as specified in Clause 5, or other similar texts.

Unless the agencies according to the first paragraph, issue the certificate of “Meat Products” according to Clause 4 that are apart from “Meat Products” which defined as “carcass” according to the law regarding animal epidemics, the importer shall have the certificate of inspection and certification from responsible government agency or other agencies recognized by responsible government agency of producing country of such products, or Certification Body (CB) which is accredited by the Accreditation Body (AB) that are members and have been recognized by the International Accreditation Forum (IAF), which is still valid, indicating either of the following quality assurance system of the manufacturing premise of such products:

(1) Hazard Analysis and Critical Control Point (HACCP) System as designated by the Codex Alimentarius Commission;

(2) Food Safety Management Systems-Requirements for any Organization in the Food Chain (ISO 22000 latest edition);

(3) Pharmaceutical Inspection Co-operation Scheme: PIC/S GMP;

(4) Other criteria or other international systems equivalent to (1) (2) or (3), or other systems that applied hazard analysis and critical control point (HACCP) system as approved by Thai FDA.

Clause 9 This Notification shall come into force as from the date of its publication in the Government Gazette.

Notified on 12nd June B.E. 2568 (2025)

Signed Somsak Thepsuthin

(Mr. Somsak Thepsuthin)

Minister of Public Health

(Published in the Government Gazette Vol. 142, Special Part 240 Ngor, dated 7th July 2025)

Disclaimer: This translation is provided by the Food and Drug Administration as the competent authority for information purposes only. Whilst the Food and Drug Administration has made efforts to ensure the accuracy and correctness of the translation, the original Thai text as formally adopted and published shall in all events remain the sole authoritative text having the force of law.

List of the Countries or zones or compartments based on BSE risk status

Attachment of Notification of the Ministry of Public Health (No. 459) B.E. 2568 (2025)

Re: Import requirements and conditions for food with risk from Bovine Spongiform Encephalopathy

1. Category 1 Countries or zones or compartments posing a negligible BSE risk:

- | | |
|---------------------------------------|--|
| (1) Argentina | (31) Luxembourg |
| (2) Australia | (32) Malta |
| (3) Austria | (33) Mexico |
| (4) Belgium | (34) Namibia |
| (5) Bolivia | (35) The Netherlands |
| (6) Brazil | (36) New Zealand |
| (7) Bulgaria | (37) Nicaragua |
| (8) Canada | (38) Norway |
| (9) Chile | (39) Panama |
| (10) Colombia | (40) Paraguay |
| (11) Costa Rica | (41) Peru |
| (12) Croatia | (42) Poland |
| (13) Cyprus | (43) Portugal, including Azores and Madeira |
| (14) Czech Republic | (44) Romania |
| (15) Denmark | (45) Serbia, with the exclusion of Kosovo administered by
the United Nations |
| (16) Estonia | (46) Singapore |
| (17) Finland, including Åland Islands | (47) Slovakia |
| (18) France | (48) Slovenia |
| (19) Germany | (49) Spain, including Balearic Islands and Canary Islands |
| (20) Hungary | (50) Sweden |
| (21) Iceland | (51) Switzerland |
| (22) India | (52) zones in United Kingdom consisting of Northern Ireland
and Jersey |
| (23) Ireland | (53) United States of America |
| (24) Israel | (54) Uruguay |
| (25) Italy | (55) a zone consisting of the People's Republic of China,
with the exclusion of Hong Kong and Macau |
| (26) Japan | |
| (27) Korea (Rep. Of) | |
| (28) Latvia | |
| (29) Liechtenstein | |
| (30) Lithuania | |

2. Category 2 Countries or zones or compartments posing a Controlled BSE risk:

- (1) Chinese Taipei
- (2) Ecuador
- (3) Greece
- (4) Russia
- (5) zones in United Kingdom consisting of England , Wales and Scotland

3. Category 3 Countries or zones or compartments posing a Undetermined BSE risk:

the countries or zones or compartments are not in Category 1 or Category 2